

25CHCV02509 25CHCV02509

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV02509 Hearing Date: August 11, 2026 Dept: F43

Dept. F43

Hearing Date: 08-11-26

Case # 25CHCV02509, Trujillo v. Yon,
et al.

Trial Date: None set.

MOTION TO VACATE
DISMISSAL

MOVING PARTY: Plaintiff Carmen Trujillo

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order vacating dismissal entered on the
Complaint on June 5, 2026.

RULING: Motion is granted.

SUMMARY OF ACTION

On July 16, 2025, plaintiff Carmen Trujillo
filed this personal injury action against defendant John Yon, alleging Yon's
dog attacked and permanently injured her on April 19, 2025, while she was

standing outside her residence. The complaint asserts strict liability and negligence causes of action. On December 11, 2025, Plaintiff added FPI Management, Inc. as a defendant. FPI Management filed an answer on February 17, 2026.

On January 5, 2026, default was entered against defendant John Yon.

On March 19, 2026, Plaintiff and FPI Management filed their case management statements. On April 3, 2026, Plaintiff failed to appear at the Case Management Conference, which the court continued to June 5, 2026. (4/03/2026 Minute Order.) Notice was sent to Plaintiff's prior counsel, Niko Kravchenko. (7/17/2025 Clerk's Certificate of Service by Electronic Service.) The court also issued an OSC Re: sanctions as to why Plaintiff failed to appear at the Case Management Conference. The Clerk of the Court mailed a copy of the order to Mr. Kravchenko that same day. (4/03/2026 Certificate of Mailing.)

On April 6, 2026, attorney Kravchenko filed a declaration, explaining he did not appear at the case management conference because he believed Plaintiff wished to be represented by other counsel. (4/06/2026 Declaration of Niko Kravchenko.) On March 17, 2026, attorney George K. Jawlakian sent Mr. Kravchenko a letter stating Plaintiff had requested that his office represent her in this matter and that he refrain from further communicating with Plaintiff. (Id. ¶ 2, Exh. A.) Two days later, Mr. Kravchenko provided Mr. Jawlakian with a substitution of attorney form and requested he sign it. (Id. ¶ 3.) Follow-up emails were sent to Mr. Jawlakian on March 20, 23, and 30 and April 3, 2026, about the form and the upcoming Case Management Conference. (Id. ¶¶ 4-7, Exh. B [mentioning the April 3, 2026, Case Management Conference in the March 23, 2026, email and copying "" on the email].)

On April 21, 2026, Plaintiff filed the substitution of attorney form which indicates Plaintiff executed the form on March 19, 2026, and Mr. Jawlakian executed the form on April 21, 2026. (4/21/2026 Substitution of Attorney.)

Plaintiff filed a revised Case Management Statement on May 18, 2026, which lists the conference date as June 5, 2026, at 8:30 a.m. (5/18/2026 Case Management Statement at p. 1.)

Because neither defense counsel nor Plaintiff's counsel appeared at the June 5, 2026, Case Management Conference, the court ordered the Complaint dismissed without prejudice. (6/05/2026 Minute Order.) The Clerk of the Court electronically served a copy of the court's order to counsel that same day. (6/05/2026 Clerk's Certificate of Service by Electronic Service [serving Mr. Jawlakian at ""].)

On June 11, 2026, Plaintiff filed the instant motion to vacate the dismissal because the dismissal resulted from her counsel's mistake, inadvertence, and neglect in miscalendaring the June 5, 2026, hearing. The case was actively being litigated, no trial date has been set, and defendant FPI Management, Inc. will suffer no prejudice from reinstating this matter. No opposition was filed.

ANALYSIS

A. Vacating a Dismissal pursuant to Code Civ. Proc., § 473, subd. (b)

A court may set aside any "judgment, dismissal, order, or other proceeding," including a voluntary dismissal, that was entered due to mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b); *Zamora v. Clayborn Group, Inc.* (2002) 28 Cal.4th 249, 254-255 [noting the statutory language does not limit discretionary relief to "involuntary judgments or dismissals"]; *Jackson v. Kaiser Found. Hospitals, Inc.* (2019) 32 Cal.App.5th 166, 173-177.) Section 473, subdivision (b) applies to cases involving attorney mistakes which are excusable, not inexcusable. (*Jackson*, supra, 32 Cal.App.5th at p. 174.) "Application for this relief shall . . . be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

"[D]iscretionary relief under [Section 473, subdivision (b)] is available for voluntary judgments and

dismissals.” (See *Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 116, 174, emphasis added.) Section 473, subdivision (b)’s discretionary provision applies “to cases involving attorney mistake only when the mistake is excusable.” (See *Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 116, 174 [citing *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258].) “[A]ttorney conduct falling below the professional standard of care is not excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Id.*, at p. 174, citations omitted.)

“Even after a voluntary dismissal with prejudice has been filed, the trial court has jurisdiction to vacate the judgment of dismissal under Code of Civil Procedure section 473 where it has been entered as a result of the plaintiff’s ‘mistake, inadvertence, surprise, or excusable neglect.’” (*Basinger v. Rogers & Wells* (1990) 220 Cal.App.3d 16, 21 [quoting *Biggs v. Biggs* (1951) 103 Cal.App.2d 741]; *Palace Hardware Co. v. Smith* (1901) 134 Cal. 381, 385 [vacating a voluntary dismissal based on settlement agreement because plaintiff mistakenly forgot about a \$105.00 claim against the defendant].)

Plaintiff timely filed her motion six days after the court issued its order and asserts her nonappearance at the June 5, 2026, Case Management Conference resulted from her counsel’s clerical calendaring error after being substituted into this case.

Excusable neglect or mistake “exists when ‘a reasonably prudent person in similar circumstances might have made the same error.’” (*County of San Bernardino v. Mancini* (2022) 83 Cal.App.5th 1095, 1103 [quoting *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423]; see also *Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1383.)

“Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.” (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423, quotation omitted.)

“Relevant factors in assessing counsel error include: ‘(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim.’”

(Ibid. [quoting Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276].)

Excusable neglect and mistakes include clerical mistakes (such as a legal assistant misfiling papers) or extraordinary circumstances such as staff changes resulting in the work of five attorneys being redistributed to three attorneys, and counsel being unaware of misplaced papers. (Huh, supra, 158 Cal.App.4th at p. 1424.) Inexcusable neglect results if lack of diligence, carelessness, or failure to fulfill the legal obligations of a reasonably prudent person would have addressed under similar circumstances. (But see Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 31-32 [finding defendant's negligence in notifying plaintiff of updated mailing address was not excusable because defendant knew about the lawsuit and caused plaintiff to serve the amended complaint to the wrong address].)

Plaintiff presents her attorney's declaration. (Declaration of Ara M. Baghdassarian.) Attorney Baghdassarian states after new counsel was substituted in, Plaintiff served written responses to defendant FPI Management's discovery requests, filed a Case Management Statement on May 18, 2026, and posted jury fees on June 3, 2026.

(Id. ¶ 5.) For some reason, Mr. Baghdassarian's office miscalendared the June 5, 2026, date and as a result, neither Mr. Baghdassarian nor Plaintiff appeared at the conference. (Id. ¶¶ 6, 10.)

The court is unclear concerning what inadvertence or excusable neglect or mistake led to counsel's staff miscalendaring the conference date because counsel timely filed the case management statement and included the correct conference date on the statement. However, because neither plaintiff's counsel nor defense counsel attended the Case Management Conference and plaintiff's counsel's diligently filed the instant motion upon notice of the June 5, 2026, ruling, the court finds that Plaintiff has adequately made her showing.

Therefore, the court grants Plaintiff's motion.

CONCLUSION and ORDER

Motion is granted.